

[15 & 16 GEO. 5.] *Advocates Widows' Fund* [Ch. xvi.]
(*Widowers' Provisions*) Order Confirmation Act, 1925.



CHAPTER xvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Advocates Widows' Fund (Widowers' Provisions). A.D. 1925.

[13th May 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Advocates Widows' Fund (Widowers' Provisions) Order Confirmation Act 1925. Short title.

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SCHEDULE.

ADVOCATES WIDOWS' FUND
(WIDOWERS' PROVISIONS).

Provisional Order for amending and extending the Act 11 Geo. IV cap. XLI (Local) intituled "An Act to raise a Fund for Provisions to Widows of the Members of the Faculty of Advocates of Scotland" by making the said fund available for provisions to widowers of women members of the said Faculty.

WHEREAS an Act was passed in the Eleventh year of the reign of his late Majesty King George the Fourth (11 Geo. IV. cap. XLI (Local)) intituled "An Act to raise a Fund for Provisions to Widows of the Members of the Faculty of Advocates of Scotland" (hereinafter referred to as "the principal Act") :

And whereas by the principal Act it is provided that all persons admitted members of the said Faculty of Advocates on or after the first day of January in the year one thousand eight hundred and thirty-two shall during their respective lives be bound to contribute to the said fund (hereinafter referred to as "the fund") established under the provisions contained in the principal Act :

And whereas there has recently been admitted to membership of the said Faculty a woman duly qualified in accordance with its rules and other women so qualified may from time to time be admitted to membership :

And whereas the fund is not by the provisions of the principal Act made available for provisions to widowers of women members of the said Faculty and it is just and expedient and would be attended with beneficial consequences that the fund should be made so available :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

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Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

A.D. 1925.
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1. This Order may be cited as the *Advocates Widows' Fund (Widowers' Provisions) Order 1925* The principal Act may be cited as the *Advocates Widows' Fund Act 1830* This Order and the principal Act may be cited together as the *Advocates Widows' Fund Acts 1830 and 1925.*

Short titles and collective title.

2. The principal Act and the whole provisions enactments and tenor thereof shall have effect and shall be deemed always to have had effect as if women members of the Faculty of Advocates of Scotland were included in the expression "all persons who shall be admitted members of the said Faculty after the passing of this Act" where occurring in section 2 (Contributors) of the principal Act.

Application of principal Act to widowers of woman contributors.

3. In the principal Act the words "widow" and "widows" shall include "widower" and "widowers" the words "widower" and "widowers" shall include "widow" and "widows" the words "bachelor" and "bachelors" shall include "spinster" and "spinsters" the words "husband" and "husbands" shall include "wife" and "wives" the words "wife" and "wives" shall include "husband" and "husbands" the word "he" shall include "she" the words "his" and "him" shall include "her" the word "her" shall include "him" or "his" as the case may be and the word "himself" shall include "herself" and the principal Act shall (unless the context otherwise requires) be read and construed accordingly.

Interpretation of principal Act.

4. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid out of the fund.

Costs of Order.

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